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IRAQ

Human Rights Developments

The Iraqi government headed by President Saddam Hussein continued to rule most of the country except for the three northern governorates of Duhok, Arbil, and Sulaimaniyya, and some towns and villages in Kirkuk and Nineveh governorates. There were frequent reports from government-controlled areas of mass summary executions of prisoners. The February 1999 assassination of a prominent Shi'a cleric, apparently by or at the behest of the government, provoked extensive clashes between demonstrators and security forces in Baghdad and many southern cities, and reports of further unrest continued to emerge over the following months. Forced relocations reportedly continued in various areas, notably in the oil-rich region around Kirkuk where many Kurds and Turkomans reside, and there were reports of punitive house demolitions in Baghdad and elsewhere.

In the northern autonomous governorates, the rivalry between the Kurdistan Democratic Party (KDP) and the Patriotic Union of Kurdistan (PUK) continued. Armed clashes between the militias of the two groups did not resume following the truce negotiated between the two parties in Washington, D.C., in September 1998, but provisions for sharing border revenues and arranging new elections to the regional parliament were not implemented, despite further high-level meetings between the groups in Washington in January and again in June 1999.

The United Nations Security Council embargo of Iraqi exports and imports entered its tenth year in August 1999. The stalemate over Iraq's incomplete compliance with the disarmament demands of the Security Council continued, as did sharp division among the five permanent members of the council over what steps to take to secure full compliance and to address the continuing humanitarian crisis, which was complicated by a serious drought in the region. Rising oil prices in the summer of 1999 finally allowed Iraq to reach and even exceed its quota of \$5.2 billion in allowable oil exports under the expanded "oil-for-food" program authorized by Security Council Resolution 1153 (1998) for the six month phase ending November 20, but total oil revenues under the program remained below the authorized level. As of September 20, out of \$9.7 billion worth of contracts submitted under the program since its beginning in early 1997, the Security Council had approved \$8 billion and \$5.5 billion of this, 72 percent of it foodstuffs, had arrived in Iraq, according to the U.N. Office of the Iraq Programme. A four-night air assault on Iraq by the United States and the United Kingdom in mid-December 1998 was followed by almost daily attacks on Iraqi air defense installations in the southern and northern "no-fly" zones.

In November 1998 the Centre for Human Rights, a London-based affiliate of the opposition Iraqi Communist Party, reported that on October 1, 1998, Iraqi authorities under the command of Gen. Sabah Farhan al-Duri executed 119 Iraqis and three Egyptians in Abu Ghraib prison near Baghdad. The group reported that twenty-nine of those killed were members of the armed forces, and fifty had been imprisoned for their participation in the March 1991 uprisings that followed the Gulf War. Among them, only the bodies of three senior military officers were turned over to relatives; many of the others were reportedly buried in a mass grave in an area controlled by the Abu Ghraib municipality.

This mass execution was apparently a continuation of the "prison-cleansing" campaign launched by the government a year earlier. The U.N. special rapporteur on the situation of human rights in Iraq, in

his February 1999 report to the U.N. Economic and Social Council, reported having received the names and background information regarding more than 200 prisoners executed between October and December 1998, making a total of some 2,500 executed since the last months of 1997. Human Rights Watch received reports of more than 600 detainees who were reportedly executed in the first four months of 1999, many by name and date of execution. None of these reported executions appeared to follow from any judicial due process.

Ayatollah Muhammad Sadiq al-Sadr, the leading Shi'a cleric in Iraq, was assassinated in Najaf while driving home on the evening of February 19 along with his two sons and chief assistants, Mustafa and Mu`ammal, and their driver. The government had recognized al-Sadr as grand ayatollah in 1992, but in the months preceding his death he had begun distancing himself from the government in Friday sermons and urging people, against government wishes, to attend mass prayer gatherings. In early December 1998 he reportedly called off a march to the shrine of Imam Hussein in Kerbala after the government massed security forces around the city to enforce its ban on the march. According to Iraqi opposition sources, Muhammad Hamza al-Zubaidi, commander of the mid-Euphrates region, visited Ayatollah al-Sadr in January 1999 and warned him to cease his criticisms of the government. The Independent (London) reported that in his last sermon, on February 12, recorded on a tape smuggled out of Iraq, Ayatollah al-Sadr demanded the release of more than one hundred Shi'a clergy who had been detained following the March 1991 uprising and whose fate or whereabouts had not been accounted for.

The official government newspaper Al-Jumhuriyya labeled the killings as "among the many conspiracies against Iraq" and an effort to "disturb internal security," and quickly announced the arrest of several suspects. The official Iraq News Agency on April 6 issued a brief announcement that two clerics, Shaikh Abd al-Hassan Abbas al-Kufi and Shaikh Ali Qazim Hajman and two religious students, Ahmad Mustafa Ardebili and Haidar Ali Hussein, had been charged with the crime and hanged, saying that "the agents of sedition had been extirpated" but without providing a date of execution or any suggestion that judicial due process was observed. The statement also said the four were "foreigners," insinuating that they were Iranian. The April 7 edition of Liberation (Paris), citing a Shi'a opposition weekly dated January 31, noted that one of the four, Shaikh al-Kufi, had been arrested in Najaf on December 24 and thus was likely to have been in detention at the time of Ayatollah al-Sadr's assassination.

Following the murder of Ayatollah al-Sadr there were widespread reports of at least four days of heavy clashes between protesters and security forces in heavily Shi'a neighborhoods of Baghdad such as Medinat al-Thawra and in majority Shi'a cities such as Karbala, Nasriyya, Najaf, and Basra in which scores were killed and hundreds arrested. The government denied these accounts but refused to allow reporters to visit the areas in question. In late September the Centre for Human Rights provided the names of twenty-one persons whose bodies they said were among scores discovered in a mass grave near the southern town of Zubair. According to the group, they had been extrajudicially executed after being detained following a "popular revolt" lasting several days in Basra in mid-March.

There were also opposition reports of collective punishment in the form of punitive house demolitions in Qurna in November 1988, Madinat al-Thawra in July, and in villages of the al-Rumeidh tribe in early August. In September the U.S. government released aerial photos that it said substantiated opposition reports that government forces had razed 160 homes in the southern village of al-Masha on June 29 following protests over the failure to deliver food and medicine. There were also several reports of executions of army officers for alleged coup plots in December 1998 and February and March 1999.

Forced displacement of ethnic Kurds, Turkomans, and other non-Arab minorities reportedly resumed in the last months of 1998, particularly in the oil-producing region around the northern city of Kirkuk. Officials of the Kurdish Regional Government (KRG) in the autonomous region said in December 1998 that some 200,000 ethnic Kurds had been evicted from areas under government control since 1991. Mustafa Ziya, the head of a coalition of Turkoman parties, said that about 5,000 evicted Turkomans were living in "subhuman conditions in northern Iraq" while 20,000 others had fled illegally to Europe. A KRG statement of November 19, 1998, claimed that over the previous two months thirty-five families had been ordered to leave the Shorja quarter of Kirkuk, while in the

Tuzkhurmatu district land belonging to Kurds and Turkomans previously dispossessed and forcibly relocated to southern Iraq were allocated to Arab families for housing and farming. Jawhar Namiq Salem, the speaker of the Kurdistan National Assembly in Irbil, wrote to U.N. Secretary-General Kofi Annan on March 10, urging a U.N. investigation of the "ethnic cleansing" policies of the Iraqi government. The Iraqi National Accord, an opposition group, reported in late April that the government had expelled into the autonomous region 400 Kurdish and Turkoman families from the Kirkuk neighborhoods of Azadi, Iskan, Imam Qasim, al-Shorja, Rahim Awa, Qaria, Baglar, and Sari Kahia.

The relationship between Iraq and the U.N. Security Council entered another confrontational period in December 1998, when Richard Butler, chairman of the special disarmament commission (UNSCOM), reported to the Security Council that Iraq had failed to live up to its earlier promises to cooperate. The U.S., with the support of the U.K., launched four nights of missile and aircraft attacks against military-related sites in Baghdad and elsewhere. UNSCOM inspectors were evacuated prior to the attack, and there have been no on-site arms inspections in Iraq since then. Following the assault, Iraq air defense systems began to challenge U.S. and British air patrols in the so-called "no-fly" zones above the 36th and below the 32nd parallels, and U.S. and U.K. reported that their warplanes responded by attacking those sites when provoked. The New York Times, citing U.S. military sources, wrote that as of October 3 some 1,650 missiles and laser-guided bombs had been fired against 385 targets. The commander of Iraq's air force said on September 17 that the raids had killed 187 civilians and wounded 494. In an Associated Press story of September 25, a U.S. military spokesperson said that civilian damage had been "minimal to none-most of what the Iraqis have reported did not happen."

The expanded "oil-for-food" program had some positive effects on the humanitarian crisis stemming from the Security Council embargo and the Iraqi government's efforts to redirect the embargo's impact from itself onto the civilian population. The overall humanitarian situation, however, remained appalling. Benon Sevan, the executive director of the Office of the Iraq Program in the U.N. secretariat, stated in mid-November 1998, "The most I can say is that in a number of key areas the program has stopped the situation from getting worse. In other areas it has slowed down the rate of deterioration." UNICEF, comparing the 1984-89 and 1994-99 periods in the government-controlled center and south of the country, found that infant mortality had increased from 47 to 108 deaths per 1000 live births, while child mortality (under five years of age) had increased from 56 to 131 deaths per 1,000 live births—a rapid and sustained increase in infant and child mortality rates that was virtually unprecedented. UNICEF reported, by contrast, declining mortality rates in the northern autonomous governorates. The report of the secretary-general covering the three months ending on July 31 noted that for the first time the rate of chronic child and infant malnutrition had started to decline in that part of the country under government control. The secretary-general and the "humanitarian panel" established by the Security Council (see below) criticized the "holds" put on Iraqi applications to import goods and parts for the electric power, water and sanitation, and oil production sectors under "oil-for-food." The panel criticized the government of Iraq for "unjustifiable bottlenecks" that prevented the delivery of non-food goods, particularly medical supplies, to end-users. The secretary-general in several reports criticized Iraq for failing to order recommended special foods for infants, children, and nursing mothers, for encouraging bottle feeding against the advice of virtually all international public health experts, and for using the medical allocation to import expensive and sophisticated equipment with limited use rather than medicines and medical supplies needed by the general population.

Defending Human Rights

The government allowed no independent human rights organizations to operate in the governorates under its control and prevented foreign journalists or diplomats and persons working with humanitarian relief programs from traveling outside of Baghdad without escort or reporting on human rights abuses.

The Centre for Human Rights, affiliated with the Iraqi Communist Party, relayed information from inside government-controlled Iraq through its office in Shaqlawa in the autonomous region and its headquarters in London. Other Iraqi opposition groups such as the Supreme Council for the Islamic Revolution in Iraq (SCIRI), the Iraq National Accord, and the Iraq National Congress also provided

information about human rights abuses by the government in Baghdad. The border between the government-controlled and autonomous regions remained relatively porous, and many Iraqis reportedly traveled to the north and back with little hindrance. However, the presence of government intelligence operatives in the north and the refusal of neighboring countries to allow passage to the north of Iraq made it difficult for international human rights organizations to investigate abuses or to verify the information provided by opposition groups.

The Role of the International Community

United Nations

Polarization over Iraq policy in the Security Council intensified following the resort to military force by the U.S. and the U.K. in December and continued U.S. insistence on maintaining intact the embargo on Iraqi imports and exports. U.S. officials frequently ascribed the opposition of France and Russia in particular to their prospective commercial interests in Iraq, but for many countries the humanitarian crisis was clearly a factor as well. Ambassador Antonio Monteiro of Portugal, then the chair of the "661 committee" supervising the Iraq sanctions, told a symposium in early December 1998 that the Iraq sanctions had been intended as a short term measure. "We must recognize today," Monteiro said, "that, far from targeting the effects of the sanctions on those who have the power to decide and putting pressure on them to fulfill the obligations, the measures imposed on Iraq had conversely a bigger impact on the general population." Later in December Secretary-General Kofi Annan urged the Security Council to review the embargo in spite of the UNSCOM report critical of Iraq's noncooperation with arms inspectors. "I'm not sure that the comprehensive review is something that Iraq deserves or does not deserve," Annan said. "I think the Council would want to know, after eight years of sanctions, where it stands."

The council in January adopted a Canadian proposal setting up three expert panels on the disarmament situation, the humanitarian situation, and Kuwaiti persons and property still not accounted for by Iraq. Those recommendations were made public at the end of March. The disarmament panel stressed that "the status quo [of no on-site inspections] is not a practical alternative" and recommended "refocusing" disarmament efforts from detection and destruction of remaining weapons of mass destruction to a rigorous program of ongoing monitoring and verification (OMV) which would "if anything, be more intrusive than the one practiced so far" but would also place "greater reliance...on the provision of information by suppliers."

The "humanitarian panel" summarized the reports it had received from U.N. and other humanitarian agencies as indicating "a continuing degradation of the Iraqi economy with an acute deterioration in the living conditions of the Iraqi population and severe strains on its social fabric" and concluded that "almost the whole young child population was affected by a shift in their nutritional status towards malnutrition." The panel recommended: removing the ceiling on Iraqi exports; allowing private international investment to rehabilitate Iraq's oil industry; "preapproval" of applications to import food, pharmaceutical, medical, agricultural, and educational equipment; a "cash component" by way of payment for installation by and training for Iraqi workers and professionals; and steps to end the intellectual and informational isolation of Iraqi educators and health professionals in particular. Some of these recommendations were also made in the secretary-general's two-year review of the "oil-for-food" program, released on April 28.

The panel reports did not resolve the divisions in the council. France, Russia, and China supported a suspension of sanctions in return for Iraqi agreement to resume inspections while the U.K. and the Netherlands proposed suspending some aspects of the embargo following a three-month period of full Iraqi government cooperation with arms inspections. The U.S., after some hesitation, endorsed this proposal, as did most of the ten nonpermanent members. In a press interview on September 19, Hans von Sponek, the U.N. humanitarian coordinator for Iraq, called on the Security Council to "not play the battle on the backs of the civilian population by letting them wait until the more complex issues are resolved" and to "please remove the humanitarian discussions from the rest in order to really end a silent human tragedy." As of this writing, the permanent members had not agreed on a compromise draft resolution.

The Commission on Human Rights, at its annual meeting, adopted a resolution on April 23 strongly condemning Iraq's "systematic, widespread and extremely grave violations of human rights and of international humanitarian law...resulting in an all-pervasive repression and oppression sustained by broad-based discrimination and widespread terror," and extending the mandate of Special Rapporteur Max van der Stoep.

Iraq submitted its fourteenth periodic report to the Committee on the Elimination of Racial Discrimination in February 1999. In its concluding observations of August 19, the committee "recognized the adverse consequences of the economic sanctions on the enjoyment of human rights by the civilian population" and "join[ed] the appeals to the international community and the United Nations, in particular, the Security Council, for the lifting of those embargo provisions affecting, in particular, the humanitarian situation of the population of Iraq. The committee also expressed concern over reports of forced relocation of and discrimination against Kurds and other non-Arabs in the Kirkuk and Khanaqin areas. On March 10 the committee adopted a statement of concern "about acts and policies of suppression of the fundamental rights and the identity of the Kurds as a distinct people," but did not mention by name Iraq or any other country in which Kurds are a sizeable minority.

On October 26, 1998, the Committee on the Rights of the Child issued its Concluding Observations on Iraq's report, which it had considered in September. The committee noted the adverse effects of the Security Council embargo, "thereby impeding the full enjoyment by the State party's population, particularly children, of their rights to survival, health and education," and expressed concern over the absence of data on adolescent health, the dramatic increase in the economic exploitation of children, and the incompatibility of Iraq's administration of juvenile justice with the Convention and other U.N. standards.

European Union

The United Kingdom supported U.S. military attacks on Iraq, but moved away from the U.S. position opposing any modification of the embargo. In late March the U.K. reportedly suggested the transfer of responsibility for approving humanitarian contracts from the Sanctions Committee to the Office of the Iraq Program in the secretariat, a proposal that was then incorporated in a draft resolution drawn up with the Netherlands. In closed Security Council talks on July 12, U.K. ambassador Jeremy Greenstock reportedly proposed that the council agree upon a "simplified" list of Iraq's outstanding disarmament tasks.

In a joint press conference with French president Jacques Chirac on June 17, President Clinton said that their differences over Iraq "were largely a difference over what is likely to be more effective." Chirac responded that to reestablish arms inspections "what we need, at the very least, is to reexamine the conditions of the embargo...for reasons that have to do with the very serious degradation of living conditions of the Iraqi people, who are the victims of the situation.... If we are not convinced we're going to reach a result...that in any case Iraq will refuse the resolution...it would be a somewhat pointless gesture which would not lead to any results but might strain the solidarity of the Security Council."

The European Parliament, in a January 14 resolution, condemned Iraq's noncompliance with Security Council Resolution 687 (1991), endorsed the continued enforcement of the no-fly zones, urged the council to cooperate with the U.S. and regional states to establish "respect for the rule of law and basic human and democratic rights in Iraq," and demanded "an immediate and substantial increase" in the oil-for-food program and an end to Iraqi government obstruction of humanitarian aid. In a March 3 resolution on "the influx of migrants from Iraq and the neighboring region," the parliament criticized the January 1998 "action plan" of the Council of Ministers as "not established lawfully." The resolution requested the European Commission to submit a new proposal which included an analysis of the reasons for increased emigration, including human rights violations by Iraq and Turkey and Turkish military incursions into northern Iraq.

United States

Top United States officials throughout the year stressed the importance of maintaining the total embargo of Iraq. In December President Clinton's National Security Adviser Sandy Berger stated that without sanctions "oil for food would likely become oil for tanks." There were a number of indications that the administration considered the embargo a higher priority than renewing on-site arms inspections. "We would like to see an effective UNSCOM going back in there," said State Department spokesperson James Foley on January 7, "and only an effective UNSCOM going back in there. In the absence of that, we can live with the status quo. We're not panting to have UNSCOM go in there now." Pentagon spokesperson Kenneth Bacon acknowledged on May 26 that "[t]here is no sign that [Saddam Hussein] is losing his grip on power. But he does have less to maintain a grip on. His economy continues to shrink. The U.N. sanctions continue having a big impact."

Assistant Secretary of State for Near Eastern Affairs Martin Indyk said in Congressional testimony on June 8 that the U.S. is "committed to maintaining UNSC sanctions against the Iraqi regime, while lifting the burden of sanctions off the backs of the Iraqi people through the expansion and streamlining of the oil-for-food program." Indyk also stated that "we will work with forces inside and outside Iraq, as well as Iraq's neighbors, to change the regime in Iraq," and said that the administration was using \$8 million in congressionally earmarked funds "to strengthen opposition political unity, to support the Iraq war crimes initiative, to support humanitarian programs and the development of civil society, and for activities inside Iraq."

In response to congressional passage in October 1998 of the Iraq Liberation Act, which authorized \$97 million for U.S. support of opponents of the Iraqi government, the administration in January designated seven opposition groups as eligible to receive support but resisted in public congressional pressures to provide military equipment and training to the groups and appointed to the National Security Council the co-author of a Foreign Affairs article that derided as a "fantasy" the project of a U.S.-sponsored insurgency.

The administration frequently exaggerated the humanitarian impact of the "oil-for-food" program. President Clinton said on December 19, 1998, that the program "generates more than \$10 billion a year for food, medicine and other critical humanitarian supplies for the Iraqi people." In fact, only two-thirds of the proceeds go to pay for humanitarian imports, and due to low oil prices and the decrepit state of Iraq's oil production facilities, Iraq was only able to export approximately \$5.3 billion worth of oil in 1998. Undersecretary of State Thomas Pickering told the U.S. Senate on March 17 that the program had "tremendous positive impact on conditions for the average Iraqi," although the administration's sixty-day report to the Congress on May 25 also stated that because of the absence of arms inspectors "[t]he U.S. has placed holds on a number of contracts that might otherwise have been approved as a result."

On September 13, on the eve of high-level negotiations with other permanent members of the Security Council on a compromise draft resolution, the Department of State issued a report charging that the Iraqi government bore sole responsibility for the country's humanitarian crisis and reiterating many of the government's extensive human rights violations.

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